

Module 2

Man as the Agent of Morality



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Man as Agent of Morality

OBJECTIVES

At the end of the discussion, learners will be able to:

1. Explain why only human beings can be ethical.
2. Explain Knowledge, Freedom, and Circumstances as the foundation for moral acts.
3. Discuss the gravity of an action and its consequences.
4. Elucidate on man as the agent of morality, emphasizing the importance of responsibility for human action.
5. Discuss responsibility and choice.



Subtopic 1

Man as the Agent of Morality



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MORAL PERSONHOOD

- In judging whether an action is *morally good or bad, or morally right or wrong*, we determine whether this action conforms to or *violates our moral standards or principles*.
- For instance, *we judge an act of killing to be morally wrong because it violates our moral principle* which states that we ought not to kill or what we ought to respect a person's right to life.



- In doing so, we, however, already assume that the entities or beings involved in the action (its source and receiver) have ***moral status or are moral persons.***



For an action to be either morally good or bad, its source and recipient must both be ***moral recipients of actions***, while we do not generally regard animals as moral persons at least in terms of being the source of actions---they may be regarded as moral persons but only in terms of being recipients of the actions of moral persons.



Moral Personhood



Moral judgments only apply to actions involving moral persons.

- 1. What does a moral person entail?** Or what are the consequences when an entity is regarded as a moral person?
- 2. What are ways to be a moral person?** Are there different ways of being moral persons?
- 3. How does one qualify as a person?** Or what must an entity have or be capable of doing to be considered a moral person?



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MORAL PERSONS AND RIGHTS

- ***Moral persons are beings or entities having moral status or standing.***
Being so, they are the appropriate objects of moral concern.
- That is, they are the kind of entities or beings we ought to be concerned about, whether the actions that they do or the actions done to them are morally good or bad?



Moral Persons and Rights

- One standard way of defining personhood is in terms of ***possession of rights***: to be a person is to be a bearer of rights.
- ***A moral person is one who possesses moral rights.*** Consequently, it is their possession of moral rights that makes moral persons objects of moral concern.



Moral Persons and Rights

- ***Rights***, to begin with, are ***entitlements***. They refer to interests one (i.e., the bearer of rights) is allowed to pursue or actions one is allowed to do.
- ***Rights correlate with duties***, as such, they are better understood when compared and contrasted with each other. ***Duties are actions that we ought to do or perform.***



CLASSIFICATIONS OF RIGHTS

1. Based on the kind of duties imposed by rights

2. Classifying rights in terms of how rights are acquired (mode of acquisition)



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1. Based on kind of duties imposed by rights

1. *Negative Right*- one's possession of rights that imposes only the duty of non-interference on other people.

2. *Positive Right*-duty of non-interference



2. Classifying rights in terms of how rights are acquired (mode of acquisition)

1. Contractual rights are the rights that we acquire when we enter into an agreement or a contract with other persons or institutions.

The terms of the contract specify what these rights are. Contractual rights are either **formal**, *when the rights of the parties of the contract, along with their correlative duties*, are explicitly stated, usually in some written document, or **informal**, in which such rights and duties are merely implied.



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2. Classifying rights in terms ...

2. *Legal rights* are the rights that we acquire when we become citizens of a certain country or state.

The ***constitution of the state*** provides for these rights.



2. Classifying rights in terms of ...

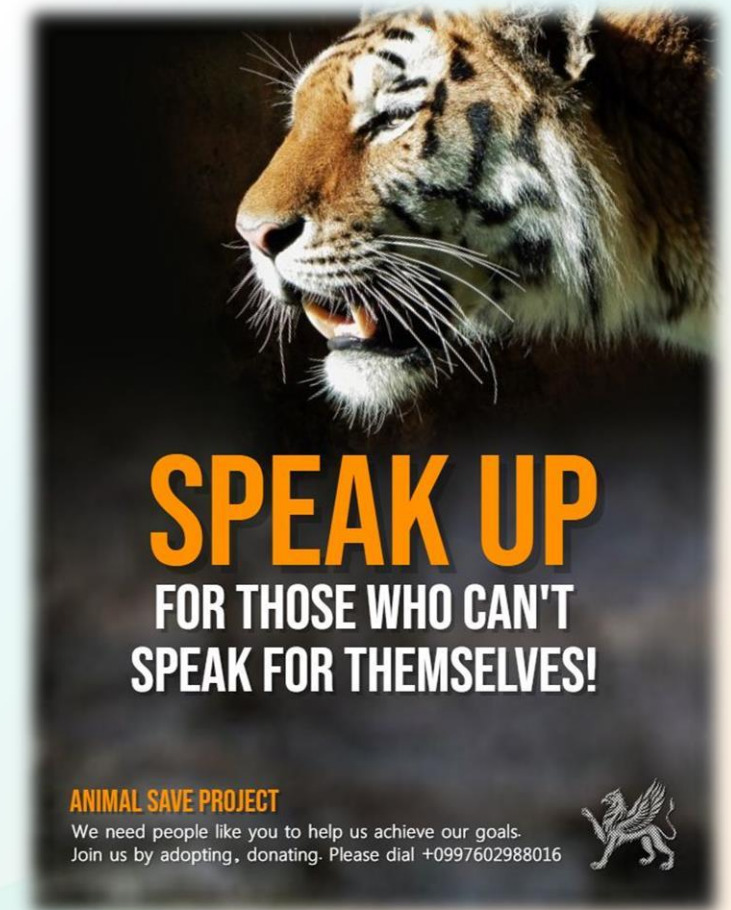
3. ***Moral rights*** are rights acquired when one becomes a moral person or a member of the moral community.

Having moral rights is entailed by being a moral person; but one becomes a moral person, and thus acquires moral right when one possesses the defining qualities of moral personhood, which may include **sentience** (the capacity to experience pleasure and pain) and **rationality** (the capacity to know and choose freely).



2. Classifying rights in terms of ...

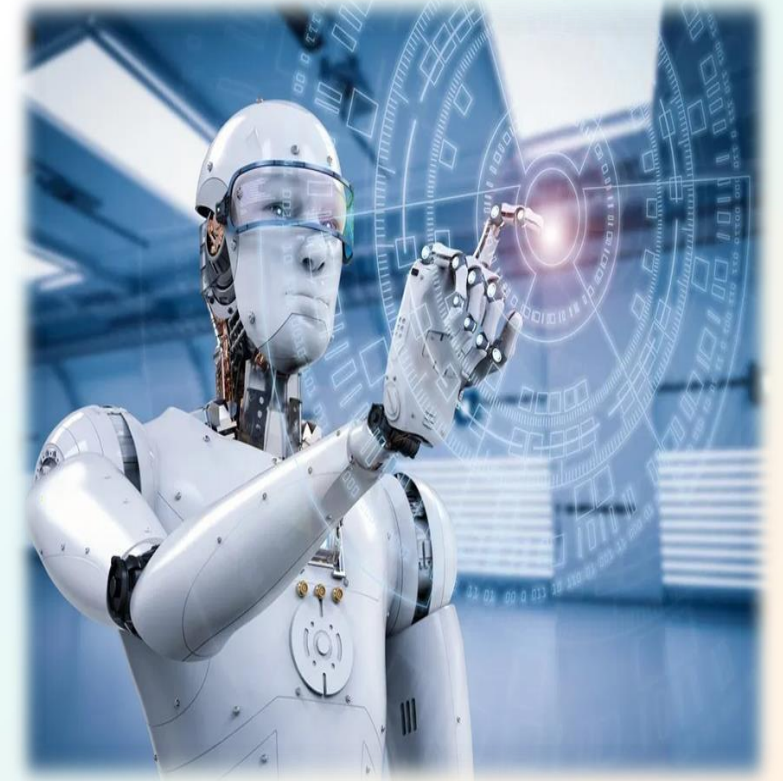
By the same light, ***we refer to the moral rights of animals as “animal rights.”*** It may be legal to treat certain animals in certain ways in some other countries (such as the practice of raising dogs for human consumption), but such ways can be said to violate animal rights generally.



POINTS TO PONDER:

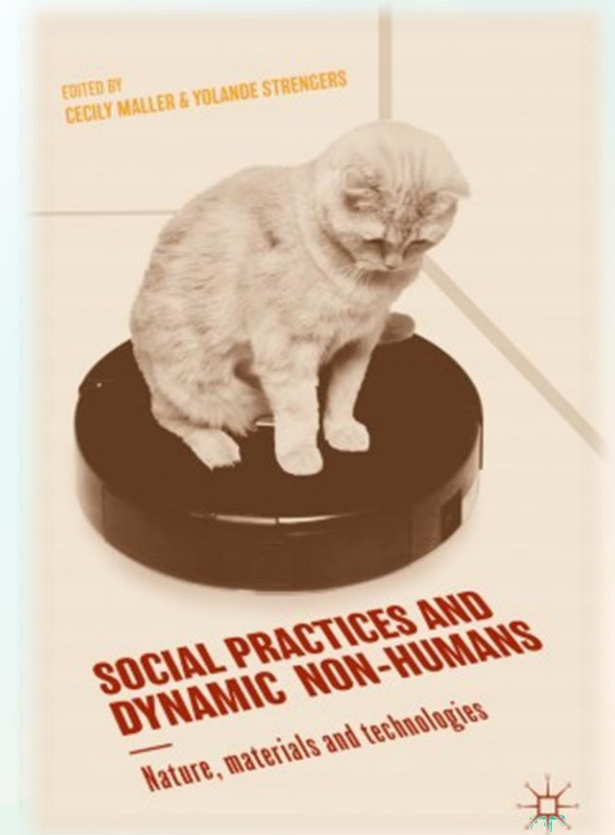
“If being a person entails possession of rights, then being a moral person entails possession of moral rights.

What is at stake in the question of whether an entity— say a human embryo, a human fetus, a brain dead human, an animal, a corporation, or an intelligent machine--- is a moral person is whether this entity has moral rights and consequently, whether other moral persons have certain moral duties of obligations towards this entity.”



MORAL AGENTS AND PATIENTS

- If humans are moral persons in virtue of their possession of certain qualities, ***moral persons***, in principle, ***can either be human or non-human.***
- ***Non-human persons*** would refer to those possessing the defining features of being a moral person but not of being a human being.
- They may include ***animals, aliens, and artificial entities like corporations and intelligent machines.***



Moral Agents and Patients

Moral persons are distinguished into:

MORAL AGENTS

When moral persons act as the sources of morally evaluable actions, in that they are the doers of such actions, they are classified as moral agents.

MORAL PATIENTS

But when they act as the receivers of such actions, in that such actions are done to them, they are classified as moral patients.



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Moral Agents and Patients

- The distinction and relation between moral patients and moral agents can also be explained in terms of the ***possession of moral rights and duties***.
- In general, ***moral agents perform morally evaluable actions because it is their moral duty to do so***; while morally evaluable actions are done to moral patients because it is their moral right that such actions be done to them.



CRITERIA FOR MORAL PERSONHOOD

Uni-criterial Theories

-identify a single essential quality for moral personhood.

Multi-criterial Theories

-identify a combination of two or more qualities that sufficiently defines moral personhood

Meta-criterial Theories

-qualify the nature of these criteria in terms of their mode of existence and attribution



Uni-criterial Theories

1. Genetic theory claims that the defining quality of a person is the possession of the human DNA or his/her membership in the species of *Homo sapiens*.

This theory is used to justify the view that ***human zygotes are already persons.***



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Uni-criterial Theories

- **2. *Life theory*** contends that the defining feature of personhood is possession of life or simply being alive. Under this view, anyone or anything that is alive is automatically a person.
- ***Life, in all its forms, is sacred.***



Uni-criterial Theories

3. The ***Rational theory*** contends that the defining feature of personhood is the capacity for rationality, which consists of the capacities for reason and free choice/will.

For this view, only rational beings, human or non-human, are moral persons.



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Uni-criterial Theories

4. The ***Sentient theory*** claims that the defining feature of personhood is ***sentience***.

It is the capacity to experience pleasure and pain, or as some would prefer to put it, the capacity to suffer.



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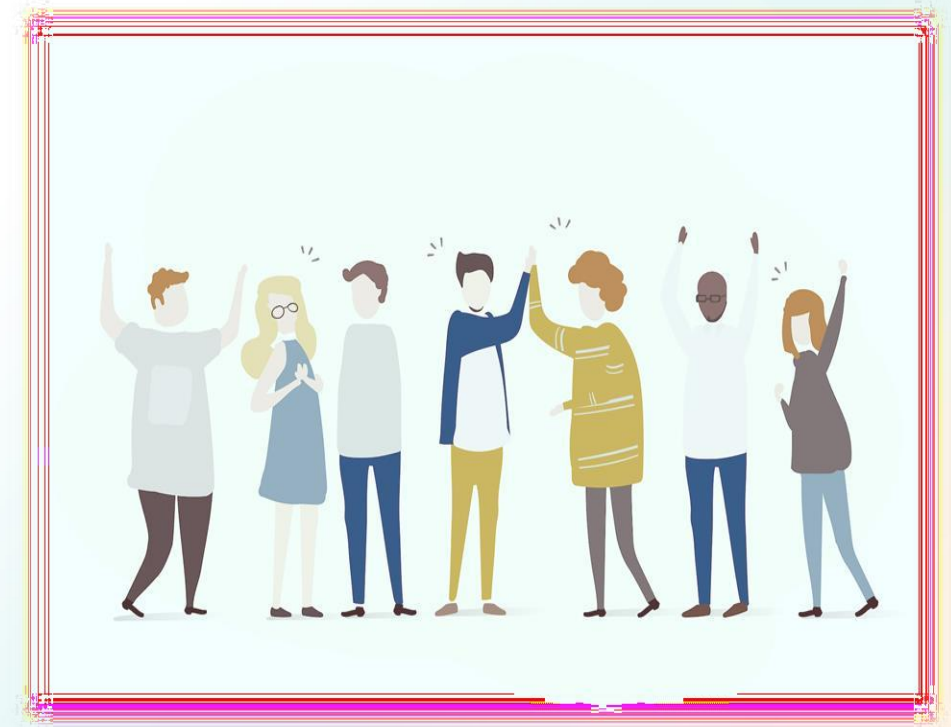


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Uni-criterial Theories

5. The **Relational theory** claims that the defining feature of personhood is the relationships one has with other entities.

These relationships are caring relationships that bring about moral duties or obligations to the caring parties.



Multi-criterial Theories

-identify a combination of two or more qualities that sufficiently defines moral personhood

LIFE THEORY

GENETIC THEORY

RATIONAL

RELATIONAL

SENTIENT



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Multi-criterial Theories

May Anne Warren's *Cognitive Theory of personhood* defines a person as one who has the capacities for

- (1) consciousness (in particular, the capacity to feel pain)
- (2) Reasoning
- (3) self-motivated activities
- (4) Communication
- (5) self-concept and self-awareness



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Meta-criterial Theories

1. The ***Social theory*** contends that personhood is a social construct or is a mere creation of society.

This is because what eventually gets accepted as the criteria for moral personhood is solely a ***matter of social agreement***.

A person, on this view, is thus any entity that ***society recognizes as a person***.



Meta-criterial Theories

2. The **Gradient theory** claims that **personhood comes in degrees** since moral persons possess the defining features of personhood in varying degrees.

As entities differ in the degree to which **they possess or can exercise the morally relevant features**, their degree of personhood allegedly differs.



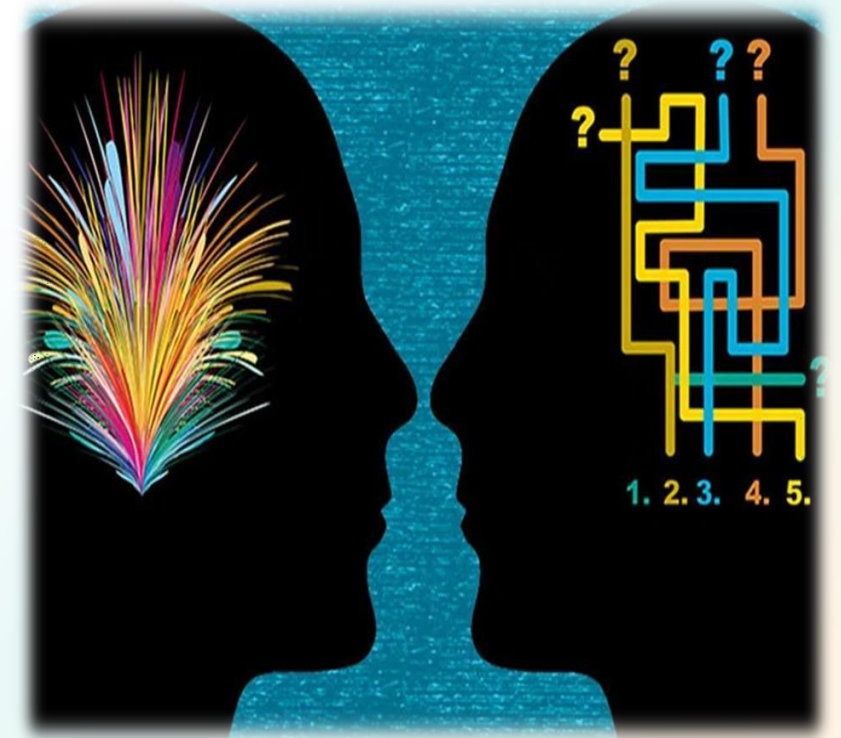
MORAL ACCOUNTABILITY

- **Moral agents** can be morally accountable for their actions towards moral patients.
- **Accountability** is the deservingness of **blame or praise** for the actions that we perform.



Moral Accountability

- It is a natural product of our ***rationality***, which consists of our ***reason (intelligence) and free will (or freedom)***.
- In practical context of performing actions, our reason enables us to distinguish between right and wrong actions, while our free will enables us to choose which action that we would like to perform.



Moral Accountability

- First, ***accountability involves both praise and blame (reward or punishment)***, for it is usual to associate accountability with blame or punishment only.
- As we blame people for their wrongdoings, ***we should also praise them for their good deeds.***



Moral Accountability

- Second, *deservingness is not negated by actualities.*
- *A person may deserve to receive something and yet may not actually receive it.*
- ***For Immanuel Kant***, the goal of morality is not happiness but the deservingness of happiness. The morally good person is one who deserves happiness regardless of whether or not he/she is in fact happy.



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CONDITIONS FOR MORAL ACCOUNTABILITY

1. Attribution Conditions

2. Degree Conditions



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1. Attribution Conditions

They determine whether the moral accountability can be attributed or assigned to a person for ***an action that he/she has done.***

- a. **Incriminating conditions** – ***make one morally accountable*** for the action under consideration.
- b. **Excusing conditions**- which ***would spare one from moral accountability*** for the action under consideration.



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2. Degree Conditions

-determine the degree of one's moral accountability.

a. Mitigating Condition- they *lessen the degree* of one's moral accountability

b. Aggravating Conditions- they *increase the degree* of one's moral accountability



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Attribution Conditions

1. Agency Condition- a person is only accountable for actions in which he/she is the cause.

2. Knowledge Condition refers to the condition in which a person knows or has the capacity to know the moral quality (the moral goodness or badness) of his/her action

3. Intentionality condition refers to the condition in which a person intends or freely chooses to perform an action he/she is doing



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Attribution Conditions

Incriminating Conditions

1. AGENCY CONDITION

A person is accountable for an action if and only if he/she is the agent of the action

2. KNOWLEDGE CONDITION

Knows or has the capacity to know that the action is good or bad

3. INTENTIONAL CONDITION

Intentionally performs the action



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Attribution Conditions

Excusing conditions

1. AGENCY CONDITION	NON-AGENCY CONDITION	NO Volition to perform the act
2. KNOWLEDGE CONDITION	IGNORANCE	NO Knowledge whether the act is either good or bad
3. INTENTIONAL CONDITION	INVOLUNTARINESS	NO Intention to perform the act

Excusing conditions

Attribution Conditions

Excusing conditions

It might be that this person:

- (1) Did the action and knew the action to be good or bad, but it was not his/her intention to do so
- (2) Did the action and intentionally did so, but he/she did not know it to be either good or bad
- (3) Simply did not do the action or was not the one who did the action



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Attribution Conditions

The Ignorance Condition

Scenario 1: Consider the case of a young child who mistook a real gun for a toy and wanting to play with his older brother, shot and eventually killed the latter. The young child did not intend to kill his older brother; he just wanted to play with him. But even if the child did not know yet or fully understand the immorality of killing a person.

- ***MORAL JUDGMENT:*** *In this case, it is appropriate to excuse the child from moral accountability.*



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Attribution Conditions

The Ignorance Condition

Scenario 2: Suppose a factory manager did not or failed to take preventive measures to protect the health of his workers from the hazardous fumes emitted in his factory. As a result, a manager of his workers got seriously sick. Later on, when the investigation was done, this manager explained that he did not know then that such fumes were hazardous. Should the manager be excused from accountability in virtue of ignorance?

MORAL JUDGMENT: We would not excuse him from accountability. For not only was he capable of knowing the effects of the factory fumes on the health of his workers, but it was his duty to know such things.



Attribution Conditions

The Ignorance Condition

Blameless ignorance- refers to the kind of ignorance where the ignorant person cannot be said to have known better, either because it is not the duty of the person to know what he/she is ignorant of, or because the person does not have the capacity to know what he/she is supposed to know.



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Attribution Conditions

The Ignorance Condition

- **Blameful ignorance-** refers to kind of ignorance where the ignorant person can be said to have known better, because ignorant person has the capacity to know what he/she should have known and it is his/her duty to know it.
- This is an *irresponsible kind of ignorance* for it results from ignorant person's negligence to do his/her duty to know certain things.



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Degree Conditions

- ***Moral accountability comes in degrees.*** Some of the circumstances surrounding the actions we have knowingly and intentionally performed affect the degree of our accountability for these actions.
- When these conditions tend to **lessen the degree** of moral accountability, they are regarded as **(1) mitigating**, but when they tend to **increase such degree**, they are **(2) aggravating**.



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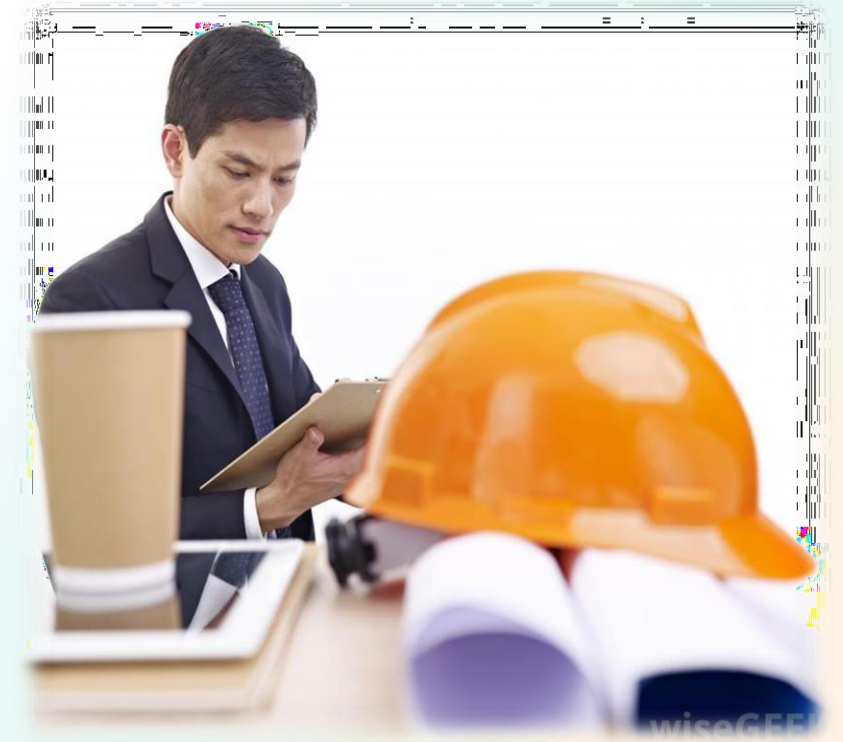


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Degree Conditions

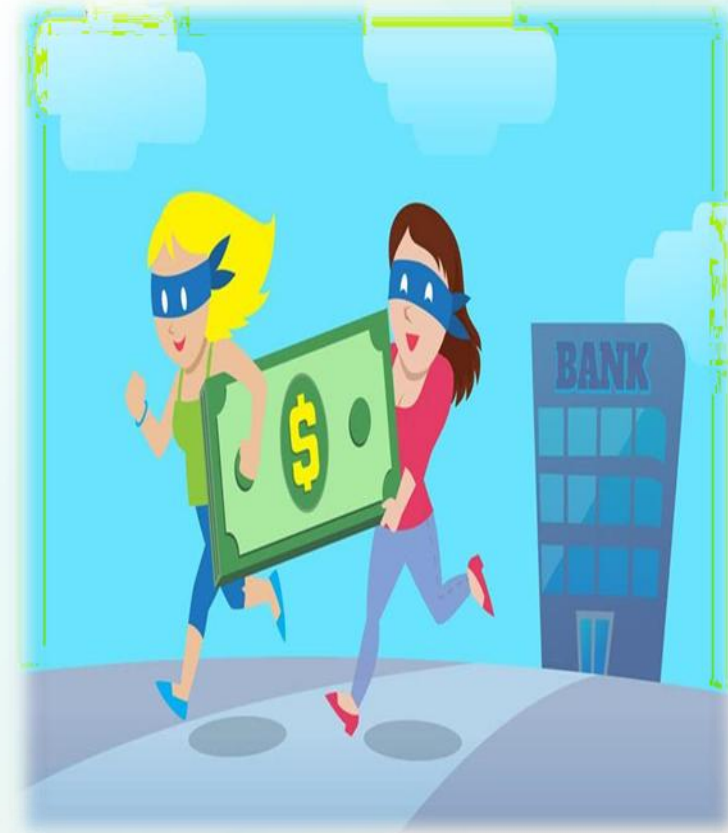
- **1. Degree of Knowledge** of the moral wrongfulness of the action, along with the relevant facts related to the action.
- *Hence, the more knowledgeable the person is, the greater his/her moral accountability. The less knowledgeable a person is, the less is his/her moral accountability.*



Degree Conditions

2. Degree of pressure or difficulty in life that forces one to perform a wrongdoing. There are moments where we feel forced to do certain actions we know to be morally wrong. Because we know such actions to be morally wrong and choose to perform them anyway, we are then morally accountable for these actions.

Here, the greater the pressure, the lesser accountability, while the lesser the pressure, the great accountability.



Degree Conditions

3. Degree of Intensity (or seriousness) of the injury caused by the wrongdoing. The greater the intensity of the injury, the greater the moral accountability. The lesser the intensity of the injury, the less the moral accountability.



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Degree Conditions

4. Degree of involvement (or participation) in a group or collective act of moral wrongdoing. The greater the involvement, the great moral accountability, while the lesser the involvement, the lesser moral accountability.

This condition explains why ***the accountability of an accomplice***, one who helps someone accomplish the latter's criminal intention, is lesser than that of the principal criminal, the one who actually and directly does the criminal act.



SUMMARY

- *Moral judgments concern the actions of moral persons*, for it is to them that moral principles properly apply.
- Moral persons are minimally defined as the *bearers of moral rights*, for while all moral persons have moral rights, some also have moral duties.
- Moral accountability refers to the *deservingness of moral blame or praise for the actions* one has performed.



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Subtopic 2

The Modifiers of Human Act



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THE MORALITY OF MORAL ACT

- *“Human acts, that is, acts that are freely chosen in consequence of a judgment of conscience, can be morally evaluated. They are either good or evil” (Catechism of the Catholic Church, 1749).*
- *All human acts can be morally judged.*



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RESPONSIBILITY

HUMAN ACT

A. Knowledge-man must therefore be embodied with mature mental states

B. Freedom-man must have the capacity to decide to do or not to do a certain act

C. Voluntariness-man must be personally willing to do the act

ACT OF MAN

Without one of the three traits of Human Act , the act is considered as **Act of Man**.



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HUMAN ACT

VERSUS

ACT OF MAN

Human Act **1. *Gina, a fourth-year high school student, opened the letter which is intended for her father.***

Act of Man 2. In the middle of the night, Arnold stood up and went to the kitchen. In the morning, he woke up without knowing why he was in the kitchen.

Act of Man **3. *Jam cut his parents' wedding picture. He was 2 years old then.***

Human Act 4. Gen. Bison, a highly respected leader, summoned his men and ordered them to prepare for coup d'etat.

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HUMAN ACT

VERSUS

ACT OF MAN

Act of Man

5. *Breathing*

Human Act

6. Blinking one's eye to captivate a pretty young lady

Act of Man

7. *Stretching one's arm to avoid sleeping (reflexes)*

Act of Man

8. Salivating upon seeing a person eating green mangoes



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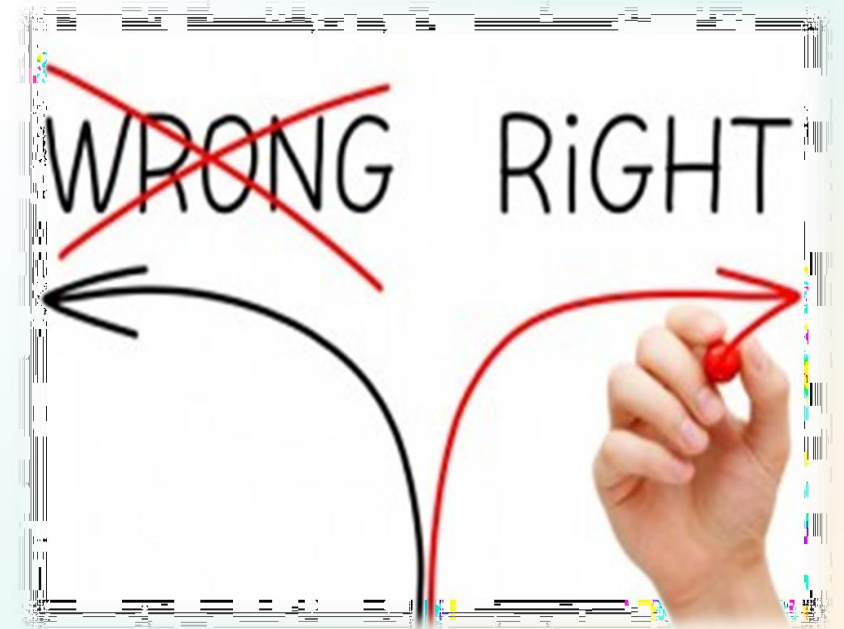


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MODIFIERS ON HUMAN ACT

- Certain factors that may affect the three constituents of human acts.
- These factors may diminish one's culpability.
- Also known as obstacles affecting the voluntariness of human acts.



MODIFIERS OF HUMAN ACTS

HUMAN ACT

A. Knowledge-man must therefore be embodied with mature mental states

B. Freedom-man must have the capacity to decide to do or not to do a certain act

C. Voluntariness-man must be personally willing to do the act

1. IGNORANCE- the absence of knowledge

2. PASSION- these are the strong bodily tendencies and emotions

3. FEAR-is the heightened emotion brought about by a foreseeable danger

4. VIOLENCE- it is the application of force on a person compelling him to do things against his will

5. HABIT- the repetition of the same activity over time



1. IGNORANCE-the absence of knowledge

Ignorance - Lack or absence of knowledge in a person capable of knowing certain things.

A. INVINCIBLE IGNORANCE-

the type of ignorance that cannot be dispelled by ordinary diligence.



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IGNORANCE- the absence of knowledge

CAUSES OF INVINCIBLE IGNORANCE

1. It may be *impossible for the individual to remove his ignorance* because he has no way of suspecting that he is ignorant.

e.g., a waiter who is not aware of the poison on the food that he serves



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IGNORANCE- the absence of knowledge

2. Although one may realize that knowledge at a certain point should be acquired, ***it is morally impossible for him to obtain the knowledge.***

e.g., an aeta who lives in the mountains all his life and happens to come to Manila for the first time and violates the traffic laws)

e.g., a doctor who is assigned to cure an impossible disease



IGNORANCE- the absence of knowledge

Principle for Invincible ignorance

No objective wrong act is culpable if it is performed in invincible ignorance inasmuch as the element of knowledge is not due to the fault of the agent.



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IGNORANCE- the absence of knowledge

B. VINCIBLE IGNORANCE

- The type of ignorance which ***can and should be dispelled***
- The agent could know and should know
- Can be cleared up if one is diligent enough

e.g., A Manila resident who violates traffic laws due to his ignorance of such laws is still responsible.



IGNORANCE- the absence of knowledge

KINDS OF VINCIBLE IGNORANCE

1. Simple Vincible Ignorance

-when one uses some, but ***not enough diligence*** to remove ignorance.

e.g., One is doubtful whether classes are suspended, asks his classmate, who is also doubtful, then decides not to go to class, and is culpable of not coming to class if there is no suspension.



IGNORANCE- the absence of knowledge

Principle for Simple Vincible Ignorance

If one performs an objectively wrong act whose wrongness one is unaware of because of simple ignorance, the action is culpable. However, the culpability is lessened by the presence of that ignorance.



IGNORANCE- the absence of knowledge

KINDS OF VINCIBLE IGNORANCE

2. Crass or Supine Ignorance

A kind of ignorance which, though not directly willed, could and should be cleared up, but left wholly undisturbed because of a lack of effort.

e.g., A doctor discovers that his patient has symptoms that he does not recognize, because of laziness. Although he can consult medical books and fellow physicians, he makes no attempts to ascertain the nature of the disease



IGNORANCE- the absence of knowledge

Principle for Crass or Supine Ignorance

This type of ignorance lessens the imputability of an act. Still it makes one gravely culpable if it concerns a matter of grave importance.



IGNORANCE- the absence of knowledge

KINDS OF VINCIBLE IGNORANCE

3. Affected Ignorance

- The kind of ignorance that is deliberately fostered to avoid any obligation that knowledge might bring to light
- ***It is not only the lack of knowledge but the unwillingness of the person to dispel his ignorance***
- PRINCIPLE: *This type of ignorance in regard to a matter of serious importance is gravely culpable.*



IGNORANCE- the absence of knowledge

PRINCIPLES OF GOVERNING IGNORANCE

1. Invincible Ignorance *eliminates moral responsibility or culpability.*
2. Vincible Ignorance *does not eliminate culpability but lessens it.*
 - “*Ignorance of the law excuses no one.*”
 - When one is invincibly ignorant, the act one does would be without knowledge; there can be voluntariness, hence no culpability.



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2. PASSION- these are the strong bodily tendencies and emotions

- A movement of the ***sensitive appetite*** which is produced by good or evil as apprehended by the mind
- ***Strong tendencies*** towards the possession of something good or towards the avoidance of something evil.
- ***Movements of passions*** are usually called ***feelings***.



PASSION- these are the strong bodily tendencies and emotions

- According to St. Thomas Aquinas, *passions are in themselves amoral. But if they are subject to the command of will and reason, then moral good and evil are in them.*

GOOD	BAD
When ordered by the will to help men and women in the practice of virtue.	When used by the will to accomplish morally evil actions
Sorrow over the death of a friend is good because it shows empathy with the bereaved family, or fear of getting drunk is good.	Using courage to rob a bank Anger is bad when you physically harmed another individual.



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PASSION- these are the strong bodily tendencies and emotions

TYPES OF PASSION

ANTECEDENT	CONSEQUENT
Arises spontaneously before the will controls the situation.	Deliberately aroused by the will to ensure a more prompt and willing operation.
Sudden feelings of joy, hatred, pity, grief, anger, as reactions to news, objects etc.	Continuously brooding over an insult, attacks the enemy and kills him.



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PASSION- these are the strong bodily tendencies and emotions

PRINCIPLES:

- ***Antecedent passions*** do not destroy freedom, but lessen freedom and hence the responsibility of the agent because it tends to blind judgment of the intellect and freedom of the will.
- ***Consequent passions*** do not lessen voluntariness but may increase it because these passions are deliberately excited.



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3. FEAR is the heightened emotion brought about by a foreseeable danger

- *Fear is a mental agitation of disturbance brought about by the apprehension of some present or imminent danger.* The danger may be real or imaginary, for as long as something is apprehended as a danger, it can cause fear.



FEAR-is the heightened emotion brought about by a foreseeable danger

TYPES OF FEAR

- 1. Grave Fear-** aroused by the presence of a danger. That is regarded by most people as serious e.g., death, loss of a leg, loss of a loved one. **That is judged to be serious by the one concerned**
- 2. Slight Fear-** aroused by a danger that is not serious. A grave danger that is not probable.



FEAR-is the heightened emotion brought about by a foreseeable danger

PRINCIPLES OF FEAR

- *One acts because of fear, if it is fear that induces him to act so e.g., being robbed, surrendering the wallet.*
- **One acts with FEAR-** *fear merely accompanies one's act but does not cause it. e.g., A student fears being caught while cheating.*
- *Actions that are done because of fear, however great or small, are voluntary, hence imputable.*



4. VIOLENCE- it is the application of force on a person, compelling him to do things against his will.

Violence is an external force applied by someone on another in order to compel him to perform an action against his will.



VIOLENCE- it is the application of force on a person compelling him to do things against his will

PRINCIPLES:

- ***If one resists the violence as much as possible, the evil act to which one is forced is not culpable.***

e.g., A man forces a young girl to have sex with him. The girl fights back; nevertheless, since the man is stronger than the girl, he succeeds in doing his evil intention. In this case, the young girl is not responsible for the act.



VIOLENCE- it is the application of force on a person compelling him to do things against his will

PRINCIPLES:

- *If one sees that any resistance would be wholly ineffective, there is no obligation to resist. The reason is that one is not obliged to do what is useless. Though a little resistance may be useful to show a lack of consent to the violence being done.*



*e.g., a bank cashier and his two
bodyguards are held up by ten heavily
armed men*

5. HABIT- the repetition of the same activity over time

- ***Habits are inclination to perform some particular action acquired by repetition,*** and characterized by a decrease power of resistance and an increase facility of performance.
- Sometimes called second nature; something deeply embedded in an individual, but ingrained by being acquired not being inborn.
- Repeated actions performed by the agent.



HABIT- the repetition of the same activity over time

Virtue is habitual good action. A **virtue** is a trait or quality that is deemed to be morally good and thus is valued as a foundation of principle and good moral being.

VERSUS

Vice is a habitual bad action that leads to negative consequences.



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HABIT- the repetition of the same activity over time

- *Evil habits do not lessen the imputability of evil actions* performed by force of habit if the habit has been recognized as evil and is freely permitted to continue.
- Evil habits lessen the imputability of evil actions performed by ***force of habit*** if one is sincerely trying to correct the habit.



When is an act good or bad?

- After establishing the responsibility of individual to his act it is important to know what makes an act good or bad. Here, there are many things to be considered. First, an act is good if it is accordance with reason, and bad if it is against reason. Reason is the characteristic of a man which separates him from plants and animals. So, any act which will betray reason is not good. stealing, for example is bad cause taking something that is not your own shows animalistic behavior. On the other hand, in moral conduct, good act and bad act is determined by three conditions.*



Principle of Double Effect

- There are instances where there is one action yet there are two effects, one is good and the other is bad. A concrete example is when a graduating student found out that she was pregnant. She has to decide if she will continue pregnancy (which according to the doctor is very sensitive) or abort the baby. If she will continue pregnancy, the baby will live but her studies will be sacrificed. On the other hand, if she will abort the baby, she can focus on her studies but the baby will die. Here there is just one act available yet there are two competing effects, a good and bad. On this just any of the conditions is not satisfied then the act must not be made.



Conditions for the Principle of Double Effect:

1. The act must be good in itself or at least indifferent.
2. The good effect must precedes from the evil.
3. The intention must be good.
4. There must be a proportionate grave reason for doing the act. (there are no other ways and there is a high possibility to success)



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Points for Human Perfection

1. It is possible that we are not here; we are very lucky that we are given the chance to live and touch lives in this happy world. ***Happily live your life and make the most out of it.***
2. Your life is your decision. ***Be responsible for your acts and choices.***
3. Reason finds room for excuses, but ***conscience will find its own ways.***



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